

GEN 1.2 Entry, Transit, and Departure of Aircraft

1. General

1.1 All flights into or over the territories of the U.S. and landing in such territories must be carried out in accordance with the regulations of the U.S. regarding civil aviation.

1.2 Aircraft landing in or departing from the territories of the U.S. must first land at, or finally depart from, an international airport (see AD 2) except as may be otherwise noted in this section.

1.3 All aircraft entering the U.S. must land at a designated international airport of entry unless prior approval to land at a landing rights or other airport has been obtained from U.S. Customs. The terms “international airport of entry” refers to any airport designated by the Secretary of the Treasury or the Commissioner of Customs as a port of entry for civil aircraft arriving in the U.S. from any place outside thereof and for cargo carried on such aircraft. (Note: Frequently the word “international” is included in the name of an airport for other than Customs purposes, in which case it has no special Customs meaning.) The term “landing rights airport” refers to an airport of entry at which permission to land must be granted by the appropriate Customs officer with acknowledgement of the Immigration and Naturalization Service, the Public Health Service, and the Animal and Plant Health Inspection Service of the Department of Agriculture. Such landing rights are required before an aircraft may land at an airport which has not been designated for Customs purposes as an international airport of entry. In the case of scheduled aircraft, such permission must be obtained from the Service/Area Director of Customs of the Port (see GEN 1.1, paragraph 4.) where the first landing will occur. In all other cases, including private aircraft, landing permission may be obtained from the Port Director of Customs (see GEN 1.1, paragraph 4.) or the Customs officer in charge of the port of entry or Customs station nearest the intended place of landing. All persons entering the U.S. must be inspected for U.S. Customs, Immigration, and Public Health purposes.

1.4 Subject to the observance of the applicable rules, conditions, and limitations of the Federal Aviation Regulations and the Department of Transportation

(DOT)/Office of the Secretary of Transportation (OST), Office of International Aviation, as described below, foreign civil aircraft registered and manufactured in any foreign country which is a member of the International Civil Aviation Organization (ICAO) may be navigated in the U.S. Foreign civil aircraft manufactured in a country which at the time of manufacture was not a member of ICAO may be navigated in the U.S. if the country has notified ICAO that the aircraft meets the standards described in the Chicago Convention or if a notice has been filed with the DOT/OST, Office of International Aviation, through diplomatic channels, that the aircraft meets the standards described in the Chicago Convention.

1.5 Aircraft registered under the laws of foreign countries, not members of the ICAO, may be navigated in U.S. territory only when authorized by the DOT/OST, Office of International Aviation.

1.6 All foreign civil aircraft operated to, from, or within the U.S. must carry on board effective certificates of registration and air worthiness issued by the country of registry. Also, each member of the flight crew must carry a valid airman certificate or license authorizing that member to perform their assigned functions in the aircraft.

1.7 Transportation of firearms by aircraft passengers. Regulations of the Alcohol, Tobacco and Firearms Division of the Internal Revenue Service make it unlawful for any person knowingly to deliver or cause to be delivered to any common or contract carrier for transportation or shipment in interstate or foreign commerce, to persons other than licensed importers, licensed manufacturers, licensed dealers, or licensed collectors, any package or other container in which there is any firearm or ammunition without written notice to the carrier that such firearm or ammunition is being transported or shipped; except that any passenger who owns or legally possesses a firearm or ammunition being transported aboard any common or contract carrier for movement with the passenger in interstate or foreign commerce may deliver said firearm or ammunition into the custody of the pilot, captain, conductor or operator of such common or contract carrier for the duration of the trip.

1.8 Miscellaneous Information

1.8.1 Commercial air transport operators in the U.S. must adhere to Annex 6 – Operation of Aircraft with the proviso that aircraft which have no operators' local representative available to them will be required to carry a fixed fuel reserve of not less than 45 minutes at the approved fuel consumption rate plus a variable reserve equivalent to 15% of the fuel required from departure to destination and to an alternate if an alternate is required; or where the reserve calculated in accordance with the above exceeds two hours at the approved fuel consumption rate – two hours reserve fuel.

2. Scheduled Common Carriage Flights

2.1 General

2.1.1 Generally, when an operator of an aircraft advertises its transportation services to the general public or particular classes or segments of the public for compensation or hire, it is a common carrier. In turn, the transportation service the operator performs is considered to be in common carriage. The scheduled flights into, from and landing in the territory of the U.S. for purposes of loading or unloading passengers, cargo and mail (revenue flights), must first obtain from the U.S. DOT/OST, Office of International Aviation (X-40), a foreign air carrier permit. Applications for common carrier authority must be filed with X-40. If X-40, with the President's approval, determines that the carrier is fit, willing, and able to perform the service it proposes and that the service is in the public interest, X-40 must issue the carrier a foreign air carrier permit, subject to the disapproval of the President of the U.S.

2.1.2 The scheduled flights in transit across the territory of the U.S. or landing for reasons other than for the purpose of loading and unloading of passengers, cargo or mail (nonrevenue flights), which are registered in a State which is a party to the International Air Services Transit Agreement, must submit a notice of transit to X-40. The notice of transit must be submitted at least 15 days prior to the flight and must include:

2.1.2.1 Name, country of organization and nationality (including the nationality of all ownership interests) of the operator;

2.1.2.2 Name of the country in which the aircraft to be used in the service is registered;

2.1.2.3 A full description of the proposed operations including the type of operations (passenger, property, mail, or combination), date of commencement, duration and frequency of flights, and routing (including each terminal and intermediate point that will be served);

2.1.2.4 Copies of advertising of the flights, if advertised in the U.S.

2.1.3 If the notice is timely filed, the flights may be operated in the absence of a contrary notification from X-40.

2.1.4 Scheduled flights in transit across the territory of the U.S. or landing for reasons other than for the purpose of loading and unloading of passengers, cargo or mail (nonrevenue flights), which are registered in a State which is not a party to the International Air Services Transit Agreement, must obtain prior permission from X-40 at least 15 days prior to the flight. All permission requests must include the same information as requested in paragraph 2.1.2 (See also paragraph 1.5). The carrier may not transit U.S. territory unless and until it receives a foreign aircraft permit to do so from X-40.

2.1.5 The permission to transit U.S. territory as described above also includes the right to make stops in the U.S. for technical purposes (for example, refueling and servicing of the aircraft) as long as the stopover does not exceed 24 hours. Stopovers which do exceed 24 hours are permitted only in those cases where a transfer of passengers, property or mail to another aircraft is necessary for the safety of the aircraft, passengers, property, or crew. Stopovers for the pleasure or convenience of passengers are not included in the transit authority.

2.2 Documentary Requirements for Clearance of Aircraft

2.2.1 The undermentioned documents must be submitted to U.S. authorities for clearance on entry and departure of aircraft. All documents listed below must follow the ICAO standard format as set forth in the relevant appendixes to Annex 9, and are acceptable only when furnished in English.

2.2.2 Aircraft Documents Required (Arrival and Departure)

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Required by	General Declaration	*Passenger Manifest	Cargo Manifest
Customs Agriculture	1	0	1
Plant and Quarantine	1	0	1
Immigrations	1	0	1
Public Health	1	0	0
Total	4	0	3
*See paragraph 2.4 in GEN 1.3			

2.3 Public Health Measures Applied to Aircraft

2.3.1 At airports without Public Health Service Quarantine staff, the Customs, Immigration, or Agriculture Officer present will represent the Public Health Service.

2.3.2 No public health measures are required to be carried out with respect to aircraft entering U.S. territory except that disinfection of an aircraft may be required if it has left a foreign area that is infected with insect-borne communicable disease and the aircraft is suspected of harboring insects of public health importance. Disinfection is defined as: “The operation in which measures are taken to kill the insect vectors of human disease present in carriers and containers.”

2.3.3 Disinfection must be the responsibility of the air carrier and must be subject to monitoring by the Director of the Public Health Service.

2.3.4 Disinfection of the aircraft must be accomplished immediately after landing and blocking. The cargo compartment must be disinfected before the mail, baggage, and other cargo are discharged and the rest of the aircraft must be disinfected after passengers and crew deplane.

2.3.5 Disinfection must be performed with an approved insecticide in accordance with the manufacturer’s instructions. The current list of approved insecticides and sources may be obtained from the Division of Quarantine, Center for Prevention Services, Centers for Disease Control, Atlanta, GA 30333.

2.3.6 All food and potable water taken on board an aircraft at any airport and intended for human consumption thereon must be obtained from sources

approved in accordance with Title 21, Code of Federal Regulations, Parts 1240 and 1250.

2.3.7 Aircraft inbound or outbound on an international flight must not discharge over the U.S. any excrement or waste water or other polluting materials. Arriving aircraft must discharge such matter only at servicing areas approved under regulations cited in paragraph 2.3.6 above.

2.3.8 Aircraft on an international voyage, which are in traffic between U.S. airports, must be subject to inspection when there occurs on board, among passengers or crew, any death, or any ill person, or when illness is suspected to be caused by insanitary conditions.

3. Nonscheduled, Noncommon Carriage Flights

3.1 General

3.1.1 Nonscheduled, noncommon carriage flights are transportation services for remuneration or hire that are not offered to the general public.

3.1.2 Nonscheduled flights in transit across the territory of the U.S. or landing for reasons other than the purposes of loading and unloading passengers, cargo or mail (nonrevenue flights) which are registered in a State which is a member of the International Civil Aviation Organization (ICAO) may do so without the necessity of obtaining prior permission, provided passengers are not permitted to leave the airport during stopover or provided that each stopover does not exceed 24 hours. Stopovers which do exceed 24 hours are permitted only in those cases where a transfer of passengers, property or mail to another aircraft is necessary for the safety of the aircraft, passengers, property, or crew. Stopovers for the pleasure or convenience of passengers are not included in the transit authority.

3.1.3 Nonscheduled flights landing in the territory of the U.S. for reasons of loading or unloading passengers, cargo or mail (revenue flights), must obtain prior permission from the DOT/OST, Office of International Aviation (X-40), at least 15 days prior to the flight. All permission requests must include:

3.1.3.1 Name and address of applicant.

3.1.3.2 Aircraft make, model, and registration or identification marks.

3.1.3.3 Country in which the aircraft is registered.

3.1.3.4 Name and address of registered owner of aircraft.

3.1.3.5 Type of flight(s) (passenger, cargo, or agricultural or industrial operation).

3.1.3.6 Purpose of flight(s).

3.1.3.7 Date of the flight(s).

3.1.3.8 Routing of the flight(s).

3.1.3.9 Number of flights.

3.1.3.10 Name of charterer.

3.1.3.11 Charter price.

3.1.4 Applications should be made on DOT/OST, Office of International Aviation Form 4509; however, if time does not permit, applications by telegram will be accepted as long as they include the information described above. Telegraphic applications must include a prepaid voucher sufficient to allow a sixty word reply. The permit must be carried aboard the aircraft during flight over U.S. territory.

3.2 The following commercial air operations require preflight authorization from X-40:

3.2.1 Agricultural and industrial operations which include, but are not limited to, such services as crop dusting, pest control, pipeline patrols, mapping, surveying, banner towing, or skywriting.

3.2.2 Occasional and infrequent planeload charter flights carrying persons or property to and/or from the U.S. The number of these flights that may be performed is limited to six in any calendar year. Foreign civil aircraft are not permitted to transport persons or property or mail for compensation or hire between points wholly within the U.S.

3.2.3 Continuing cargo operations for one or more contractors. Applicants may be authorized to serve up to 10 different contractors in a 12-month period; however, authorization may be granted only if it is clear that the service is not in common carriage and the carrier and contractor enter into a contract which provides for (a) continuing cargo operations for a period of at least 6 months; (b) an absolute or minimum number of flights or volume of cargo to be transported; and (c) a guarantee by the contractor to the carrier to pay for the minimum number of flights to be performed or volume of cargo to be transported whether or not he/she uses the capacity. Continuing

cargo operations wholly within the U.S. cannot be authorized.

3.2.4 Persons wishing to operate foreign civil aircraft from, to, or within the U.S. other than as described in this Section may request permission to perform those services by filing an application with X-40. The application should include the information described above in this section. Permission to perform these services may be granted if X-40 finds that the service is consistent with applicable law and is in the interest of the public of the U.S.

3.2.5 Nonscheduled flights in transit across the territory of the U.S. or landing with or without purposes of loading and unloading passengers, cargo or mail (revenue or nonrevenue flights) which are registered in a State which is not a member of the International Civil Aviation Organization (ICAO) must obtain prior permission from X-40 at least 15 days prior to the flight. All permission requests must include the same information as requested in paragraph 3.1.3. (See also paragraph 1.5).

3.3 Documentary Requirements for Clearance of Aircraft

3.3.1 Same requirements as for scheduled flights; in addition, Customs Form 178 must be filled out for all private aircraft arrivals.

4. Private Flights

4.1 Procedures

4.1.1 Private aircraft that operate to, from, within, or transit territorial airspace of the United States must meet special security requirements in effect through Special Notices pursuant to 14 CFR Section 99.7, Special Security Instructions.

REFERENCE-

FAA Notices to Airmen (NOTAMS), Special Notices, at (http://www.faa.gov/pilots/flt_plan/notams/).
International Flight Information Manual for U.S. Prohibitions, Restrictions, and Notices, at (http://www.faa.gov/air_traffic/publications/ifim/).

4.1.2 If an operator intends to carry out a private flight in transit across the territory of the U.S. with intermediate landing, the operator must provide advance notice of arrival to U.S. Customs officials at or nearest the first intended landing. Custom officials, upon notification, will notify the necessary Immigration, Public Health, and Agriculture officials. Advance notice must be received in sufficient time to enable the officials designated to inspect the aircraft

to reach the place of landing before the arrival of the aircraft. At least one hour advance notice is required for this purpose during regular business hours. More advance notice may be required during other times (see Aerodrome Section).

4.1.3 Notification of arrival must include:

4.1.3.1 Type of aircraft and registration number.

4.1.3.2 Name of aircraft commander.

4.1.3.3 Number of alien passengers.

4.1.3.4 Number of U.S. citizen passengers.

4.1.3.5 Place of last foreign departure.

4.1.3.6 Estimated time and location of crossing U.S. border/coastline.

4.1.3.7 Name of intended U.S. airport of first landing (designated airport).

4.1.3.8 Estimated time of arrival.

4.1.4 Private aircraft arriving from Canada or Mexico may request that advance notice of arrival to Customs officers be included in the flight plan to be transmitted to a Federal Aviation Administration (FAA) facility which is filed in those countries if destined to an airport in the U.S. where flight notification advise Customs (ADCUS) Service is available. An ADCUS message in the remarks section of the plan consists of the word ADCUS followed by the pilots name and the number of persons on board (POB) with a notation of the number of non-U.S. citizens (i.e.; ADCUS John Doe 5 POB 2 NON). This notification may be provided through FAA; however, this entails the relaying of information and is not as timely or reliable as direct communication. It is recommended that if possible, pilots attempt to communicate directly with Customs by telephone or other means to insure that an officer will be available at the time requested. It is the ultimate responsibility of the pilot to insure Customs is properly notified, and the failure to do so may subject the pilot to penalty action. At those airports where ADCUS service is available, the FAA will forward the ADCUS information to the Customs official on duty. At a landing rights airport such notices will then be treated as an application for permission to land. A flight plan notice must be filed sufficiently before the estimated time of arrival of the flight to permit Customs to make a determination as to whether or not to grant the requested landing rights.

4.1.5 Aircraft may use the following method of notifying Customs when departing from a country or remote area where a pre-departure flight plan cannot be filed or an advise Customs (ADCUS) message cannot be included in a pre-departure flight plan: Call the nearest en route domestic or international FAA flight service station as soon as it is estimated that radio communications can be established and file a VFR or DVFR flight plan and include as the last item the ADCUS information. The station with which such a flight plan is filed will forward it to the appropriate FAA station who will notify the Customs office responsible for the destination airport.

4.1.6 If the pilot fails to include “advise Customs” in the radioed flight plan, it will be assumed that the pilot has made other arrangements, and FAA will not advise Customs.

4.1.7 FAA assumes no responsibility for any delays in advising Customs if the flight plan is given to FAA too late for delivery to Customs before arrival of the aircraft. *It is still the pilot's responsibility to give timely notice even though a flight plan is given to FAA.* FAA cannot relay an “advise Customs” flight plan if the pilot indicates a destination airport where flight service notice to Customs is NOT available. When dependable facilities for giving timely notice of arrival are not available, a landing must be made at a place where the necessary facilities do exist before coming into any area from any place outside the U.S.

4.1.8 All private aircraft arriving in the U.S. via (a) the U.S./Mexican border or the Pacific Coast from a foreign place in the Western Hemisphere south of 33 degrees north latitude or (b) the Gulf of Mexico and Atlantic Coasts from a foreign place in the Western Hemisphere south of 30 degrees north latitude, from any place in Mexico, or from the U.S. Virgin Islands, must furnish a notice of intended arrival to the Customs service at the *nearest* designated airport, listed in paragraph 6., to the point of first border or coastline crossing. They must land at this airport for inspection, unless they have an overflight exemption, see paragraph 4.5. Landing rights must be obtained from Customs to land at designated airports that are *not* also approved as international airports. The requirement to furnish an advance notice of intended arrival must not apply to private aircraft departing from Puerto Rico and conducting their flights under instrument flight rules (IFR) until crossing the U.S. coastline or proceeding north of 30 degrees north latitude prior to crossing the

coastline. The notice must be furnished at least one hour before crossing the U.S. coastline or border. The notice may be furnished directly to Customs by telephone, radio, or other means, or may be furnished by means of an ADCUS message in the flight plan through the FAA to Customs. The FAA will accept these notices up to 23 hours in advance.

4.1.9 A one-hour advance notice of coastline or border penetration (but not landing) is required of private aircraft arriving in the continental U.S. from Puerto Rico that are *not* conducting their flight on an IFR flight plan and those private aircraft that have flown beyond the inner boundary of the Air Defense Identification Zone (ADIZ) south of 30 degrees north latitude on the Atlantic Coast, beyond the inner boundary of the Gulf Coast ADIZ, south of the U.S./Mexican border, or beyond the inner boundary of the Pacific Coast ADIZ south of 33 degrees north latitude *which have not landed in a foreign place*. This notice requirement may be satisfied by either filing a flight plan with the FAA and placing ADCUS in the remarks section of the flight plan or by contacting Customs directly at least one hour prior to the inbound crossing of the U.S. border or coastline.

4.2 Notice to Customs

4.2.1 The notice to Customs required by paragraph 4.1.9 of this section must include the following:

4.2.1.1 Aircraft registration number.

4.2.1.2 Name of aircraft commander.

4.2.1.3 Number of U.S. citizen passengers.

4.2.1.4 Number of alien passengers.

4.2.1.5 Place of last departure.

4.2.1.6 Estimated time and location of crossing U.S. border/coastline.

4.2.1.7 Name of U.S. airport of first landing (one of the designated airports listed in paragraph 6 of this section, unless an exemption has been granted in accordance with paragraph 4.5 of this section).

4.2.1.8 Estimated time of arrival.

4.3 Landing Requirement

4.3.1 Private aircraft that are coming from a foreign place are required to furnish a notice of intended arrival in compliance with paragraphs 4.1.9 and 4.2 of this section and must land for Customs processing

at the nearest designated airport to the border or coastline crossing point as listed in paragraph 6 of this section, unless exempted from this requirement in accordance with paragraph 4.5 of this section. In addition to the requirements of this paragraph, private aircraft commanders must comply with all other landing and notice of arrival requirements. This landing requirement must not apply to private aircraft that have not landed in a foreign place or are arriving directly from Puerto Rico.

4.4 Private Aircraft Defined

4.4.1 For the purpose of this section, “private aircraft” means any civil aircraft not being used to transport persons or property for compensation or hire. The term “person transported for compensation or hire” means a person who would not be transported unless there was some payment or other consideration, including monetary or services rendered, by or for the person and who is not connected with the operation of the aircraft or its navigation, ownership, or business. An aircraft will be presumed to not be carrying persons or merchandise for hire, and thus will be a private aircraft for Customs purposes, when the aircraft is transporting only the aircraft owner’s employees, invited guests, or the aircraft owner’s own property. This presumption may be overcome by evidence that the employees, “guests,” or property are being transported for compensation or other consideration. If an aircraft is used by a group of individuals, one of whom is the pilot making the flight for his/her own convenience, and all persons aboard the aircraft including the pilot contribute equally toward payment of the expense of operating the aircraft owned or rented by them, the aircraft would be considered private.

4.5 Exemption from the Landing Requirement

4.5.1 The owner or aircraft commander of a private aircraft required to furnish a notice of intended arrival in compliance with paragraph 4.1.9 of this section may request an exemption from the landing requirement specified in paragraph 4.3 of this section. If approved, the applicant is bound to comply with all other requirements, including operating at or above 12,500 feet mean sea level, providing advance notice of penetration to U.S. Customs at least one hour in advance of crossing the border or coastline, furnishing advance notice of arrival at the first intended airport of landing, etc. The request should be addressed to the Port Director of U.S. Customs having jurisdiction over the airport to be utilized most

frequently when arriving from points south of the U.S. Requests for exemptions can be for either a single specific flight or term (one year) approval. Applications for a single overflight exemption must be received at least 15 days in advance of the intended date of arrival; for term exemption, at least 30 days in advance.

4.5.2 Air charters or taxi service cannot be granted an unqualified term exemption since they cannot reasonably comply with the requirements of a term application, namely, comprehensive details of the passengers they will transport in the course of one year. By submitting all other details, air charters/taxis will accrue the benefit of “conditional” approval. This approval is called conditional because the operator must receive the concurrence of the Port Director prior to each trip. Concurrence will be based upon factors such as the foreign point of departure to the U.S. and the passengers being transported. The benefit realized by the charter/taxi operator is that the time constraints listed above for timely submission of single overflight exemptions can be drastically reduced. Local Customs Ports will establish minimum time frames in accordance with their own requirements.

4.5.3 Required elements of any overflight exemption include the following:

4.5.3.1 Aircraft registration number and serial number.

4.5.3.2 Identification information for the aircraft (make, model, color scheme, and type, such as turboprop, etc.).

4.5.3.3 A statement that the aircraft is equipped with a functioning mode C (altitude reporting) transponder which will be in use during the overflight.

4.5.3.4 A statement that the aircraft is capable of flying above 12,500 feet and that it will be operated at such an altitude when utilizing the overflight exemption unless ordered to fly at a lower altitude by FAA air traffic controllers.

4.5.3.5 Names, home addresses, social security numbers (optional), and dates of birth of owners of the aircraft. (If the aircraft is being operated under a lease, the name and address of the lessee, in addition to that of the owner.)

4.5.3.6 Names, home addresses, social security numbers (optional), dates of birth, and any FAA

certificate numbers of all crew members that the applicant wishes to have approved. Individual applications from each crew member must also be attached and should take the form of a signed letter from the crew member in question. The applicant must verify the accuracy of the information provided by the crew member to the best of the applicants ability. The application must contain a statement to this effect.

4.5.3.7 Names, home addresses, social security numbers (optional), and dates of birth of usual and potential passengers to the greatest extent possible. An approved passenger must be on board to utilize the overflight exemption.

4.5.3.8 Description of usual or anticipated cargo or baggage.

4.5.3.9 Description of the company’s usual business activity, if the aircraft is company owned.

4.5.3.10 Name of intended airport(s) of first landing in the U.S. (The overflight exemption will only be valid to fly to airports preapproved by Customs).

4.5.3.11 Foreign place(s) from which the flight(s) will originate.

4.5.3.12 Reason for the request of overflight exemption.

4.5.4 Information should be as complete and accurate as possible and should be specific rather than general. The following points will assist in preparing an acceptable application:

4.5.4.1 Include all potential crew members who might be present on the aircraft during the term of the desired exemption. In order for overflight exemptions to remain valid, all crew members on a flight must have been listed on your application.

4.5.4.2 Provide as many identifiers as possible for all crew and passengers. Social security numbers, passport numbers, aircraft pilot license numbers, etc., will contribute greatly to expediting background investigations.

4.5.4.3 Describe the type of business the corporation is engaged in. If the corporation that owns the aircraft is merely an air transportation service for the benefit of an affiliated company, please provide details.

4.5.4.4 List the foreign cities and countries the aircraft will visit. It is to your advantage to describe the nature of your business in each location, or to

indicate that certain destinations are vacation/entertainment locations.

4.5.4.5 The reason for overflight exemption requests should be as tangible and concretely stated as possible. Estimate the costs incurred by making an extra landing at a “designated airport” (fuel, wear on aircraft components, landing fees, additional time/distance).

4.5.4.6 Provide an estimate of the number of nautical flying miles which will be saved on an annual basis if the exemption is granted.

4.5.4.7 Companies involved in air ambulance–type operations may be granted a single overflight exemption when emergency situations arise, as well as in the case of nonemergency transport for individuals seeking medical treatment. Both U.S. and foreign registered aircraft will be eligible for the special exemption. The applicant must provide all the necessary information normally required for an overflight exemption. Customs should be notified at least 24 hours prior to departure. If this cannot be accomplished, Customs will allow receipt of the overflight exemption application up to departure time, as well as in flight through a flight service station.

4.5.5 Applicants should be aware that the processing of term applications requires time for all background reports to be prepared for the deciding official. Incomplete applications will not be processed, and the applicant will be notified of the specific additional information that must be supplied. Should an application for overflight be denied at the district level, an appeal process is available. Letters of denial will include the name and address of the Service/Area Director of Customs responsible for the district office that denied your application. You may petition the Service/Area Director for reconsideration of your request.

5. Public Health Measures Applied to Aircraft

5.1 Same requirements as for scheduled flights.

6. Airports Designated as Entry Points

6.1 Airports Designated as Entry Points for Aircraft Arriving from Mexico and Other Foreign Countries

in the Western Hemisphere South of 30 Degrees North Latitude.

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Location	Airport Name
ARIZONA	
Douglas	Bisbee–Douglas International
Douglas	Douglas Municipal
Nogales	Nogales International
Tucson	Tucson International
Yuma	Yuma International
CALIFORNIA	
Calexico	Calexico International
San Diego	Brown Field
FLORIDA	
Fort Lauderdale	Fort Lauderdale Executive
Fort Lauderdale	Fort Lauderdale–Hollywood International
Key West	Key West International
Miami	Miami International
Miami	Opa–Locka
Miami	Tamiami
West Palm Beach	Palm Beach International
Fort Pierce	St. Lucie County
Tampa	Tampa International
LOUISIANA	
New Orleans	New Orleans Lakefront
New Orleans	New Orleans International (Moisant Field)
NEW MEXICO	
Santa Teresa	Santa Teresa
NORTH CAROLINA	
Wilmington	New Hanover County
TEXAS	
Beaumont	Jefferson County
Brownsville	Brownsville International
Corpus Christi	Corpus Christi International
Del Rio	Del Rio International
Eagle Pass	Eagle Pass Municipal
El Paso	El Paso International
Houston	William P. Hobby
Laredo	Laredo International
McAllen	Miller International
Presidio	Presidio–Lely International

7. Entry and Clearance – Cuba

7.1 Aircraft arriving from or departing for Cuba must land at or depart from Miami International Airport. Upon arrival, the pilot will present a manifest of all passengers on board to an officer of the U.S. Immigration and Naturalization Service or to a Customs officer acting as an Immigration officer. No passenger arriving from Cuba by aircraft will be released by Customs, nor will the aircraft be cleared or permitted to depart before the passenger is released

by an Immigration officer or a Customs officer acting on behalf of that agency.

7.2 Aircraft proceeding to Cuba are required to have a validated license issued by the Department of Commerce or a license issued by the Department of State.

7.3 These special requirements do not apply to aircraft arriving from or departing to the U.S. Naval Base at Guantanamo Bay. Aircraft from this base must meet the same requirements as aircraft arriving from other Caribbean nations.